

could not recover if it were shown at the new trial that they had gone to Mississippi in anticipation that they would be illegally arrested. *Held*:

1. The settled common-law principle that a judge is immune from liability for damages for his judicial acts was not abolished by § 1983. Cf. *Tenney v. Brandhove*, 341 U. S. 367. Pp. 553-555.

2. The defense of good faith and probable cause which is available to police officers in a common-law action for false arrest and imprisonment is also available in an action under § 1983. *Monroe v. Pape*, *supra*, distinguished. Pp. 555-557.

3. Though the officers were not required to predict this Court's ruling in *Thomas v. Mississippi*, *supra*, that § 2087.5 was unconstitutional as applied, and the defense of good faith and probable cause is available in an action under § 1983, it does not follow that the count based thereon should be dismissed since the evidence was conflicting as to whether the police had acted in good faith and with probable cause in arresting the petitioners. Pp. 557-558.

4. Petitioners did not consent to their arrest by deliberately exercising their right to use the waiting room in a peaceful manner with the expectation that they would be illegally arrested. P. 558. 352 F. 2d 213, affirmed in part, reversed in part, and remanded.

Carl Rachlin argued the cause for petitioners in No. 79 and for respondents in No. 94. With him on the briefs was *Melvin L. Wulf*.

Elizabeth Watkins Hulen Grayson argued the cause for respondents in No. 79 and for petitioners in No. 94. With her on the brief was *Thomas H. Watkins*.

MR. CHIEF JUSTICE WARREN delivered the opinion of Court.

These cases present issues involving the liability of local police officers and judges under § 1 of the Civil Rights Act of 1871, 17 Stat. 13, now 42 U. S. C. § 1983.¹ Peti-

¹ "Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any